



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

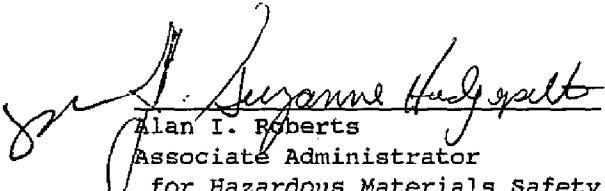
**DOT-E 4338 (PTE)
THIRD REVISION February 13, 1986
CORRECTED COPY**

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 4338. The expiration date of the exemption for the party(ies) is September 30, 1994.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.

MAR - 3 1994

(DATE)


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Hoechst Celanese Corp.
Charlotte, NC

January 14, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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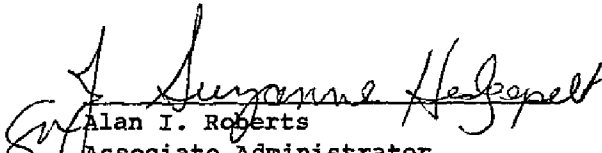
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DOT-E 4338 (EXTENSION)
THIRD REVISION February 13, 1986
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 4338 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to February 28, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 22 1992

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Akzo Chemicals, Inc.
Chicago, IL

February 21, 1992

Rhone-Poulenc Basic Chemicals Company
Shelton, CT

May 5, 1992



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of Transportation

Research and
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400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 4338
(THIRD REVISION)
(CORRECTED COPY)

1. Stauffer Chemical Company, Westport, Connecticut, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of corrosive liquids and a flammable liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes use of DOT specification 3AA2015 cylinders and DOT specification 51 portable tanks, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Stauffer Chemical Company's application dated October 25, 1984, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Triisobutylvanadate classed as a flammable liquid; titanium tetrachloride, tetra-n-butyl titanate, classed as corrosive materials; other corrosive liquids specifically identified to, and acknowledged in writing by, the Office of Hazardous Materials Regulation (OHMR).

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or corrosive liquid, n.o.s., or flammable liquid, n.o.s., as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.119(m), 173.245a, 173.247 and 174.63(b).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel. For shipment by water, stowage must be on deck.

7. SAFETY CONTROL MEASURES. Packaging prescribed is DOT Specification 3AA2015 cylinders for titanium tetrachloride; and DOT specification 51 portable tank for tetra-n-butyl titanate and triisobutylvanadate.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. Shipments by water are permitted in containers of less than 25 pounds only if such containers are further overpacked in strong wooden boxes.

c. Each portable tank must be reinspected and retested once every two years in accordance with 49 CFR 173.32 as prescribed for DOT Specification 51 portable tanks.

d. Each tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 4338."

e. Portable tanks may not be transported in trailer on flatcar (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration (FRA). Portable tanks may be transported in container-on-flatcar (COFC) service only under the following conditions:

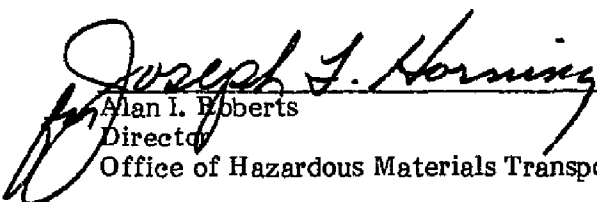
1. Portable tanks must be equipped to be securely attached to a railcar equipped with an ISO standard COFC basic pedestal system designed for container support and securement;
2. Each railcar used to transport portable tanks must be equipped with a cushioning system that meets the requirements of the Association of American Railroads Specification M-952-82; and
3. Shipments made under this exemption must be in accordance with 49 CFR 174.84.

f. A copy of this exemption must be carried aboard each vessel and motor vehicle used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. March 15, 1987.

Issued at Washington, D.C.:


Alan L. Roberts

Director

Office of Hazardous Materials Transportation

FEB 13 1986

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA